

24STCV02001 24STCV02001

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Case Number: 24STCV02001 Hearing Date: August 11, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

ACADEMY OF MEDIA ARTS,

Plaintiff,

vs.

WEI HUANG, et al.,

Defendants.

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CASE NO.: 24STCV02001

[TENTATIVE] ORDER GRANTING MOTION FOR JUDGMENT
ON THE PLEADINGS

Dept. 506

8:30 a.m.

August 11, 2026

On

January 25, 2024, Plaintiffs Academy of Media Arts (“AMA”) and D’Camp Hospitality Group LLC filed this action arising out of AMA’s lease of space at the L.A. Grand Hotel for use as a public charter school.

On

January 9, 2026, AMA filed the operative Second Amended Complaint (“SAC”) after the Court granted a motion for judgment on the pleadings directed at the First Amended Complaint (“FAC”).

On

March 6, 2026, Defendants Sun & Sky I, LLC (f/k/a Shen Zhen New World I, LLC), SNW Management (USA), and Shen Zhen New World Investment (USA), Inc. filed this motion for judgment on the pleadings directed at AMA’s second, third, and fourth causes of action.

DISCUSSION

A

motion for judgment on the pleadings is the functional equivalent to a general demurrer. (*Lance Camper Mfg. Corp. v. Republic Indemnity*

Co. of Am. (1996) 44 Cal.App.4th 194, 198.)

Like demurrers, motions for judgment on the pleadings challenge the legal sufficiency of the allegations, not their veracity. (*Donabedian v. Mercury Ins. Co.* (2004)

116 Cal.App.4th 968, 994.) The Court “must

accept as true all material facts properly pleaded, but does not consider conclusions of law or fact, opinions, speculation, or allegations contrary to law or facts that are judicially noticed.” (*Stevenson Real*

Estate Services, Inc. v. CB Richard Ellis Real Estate Services, Inc. (2006)

138 Cal.App.4th 1215, 1219-1220.)

A. The Second and Third Causes of Action

Do Not Allege Independently Wrongful Conduct.

For

the second cause of action, “[t]he tort of intentional or negligent interference with prospective economic advantage imposes liability for improper methods of disrupting or diverting the business relationship of another which fall outside the boundaries of fair competition.” (*Golden Eagle Land*

Investment, L.P. v. Rancho Santa Fe Assn. (2018) 19 Cal.App.5th 399, 429.)

To

state a claim for intentional interference with prospective economic advantage, Plaintiff must show “(1) an economic relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant’s knowledge of the relationship; (3) intentional acts on the part of the defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the acts of the defendant.” (*Marsh v. Anesthesia Services Medical Group, Inc.* (2011) 200 Cal.App.4th 480, 504 (*Marsh*) [citing *Korea Supply Company v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1153 (*Korea Supply*)].)

In

Korea Supply, “the court clarified that the third element of the tort of interference with prospective economic advantage ‘also requires a plaintiff to plead intentional wrongful acts on the part of defendant designed to disrupt the relationship.’” (*Marsh, supra*, 200 Cal.App.4th at p. 504.) “An act is independently wrongful if it is unlawful, that is, if it is proscribed by some constitutional, statutory, regulatory, common law, or other determinable legal standard, not merely the product of an improper,

but lawful purpose or motive.” (Redfearn v. Trader Joe’s Co. (2018) 20 Cal.App.5th 989, 1006.) “Such conduct must also be independently actionable, meaning the legal standards must provide for, or give rise to, a sanction or means of enforcement for a violation of the particular rule or standard that allegedly makes the defendant’s conduct unlawful.” (Ibid. [internal citations and punctuations omitted].) “In addition, the wrongful interfering act can be independently tortious only as to a third party; it need not be independently wrongful as to the plaintiff.” (Ibid. [citing Korea Supply, supra, 29 Cal.4th at p. 1163].)

For the third cause of action, “[t]he elements of an action for tortious interference are (1) a valid contract between plaintiff and a third party; (2) defendant’s knowledge of this contract; (3) defendant’s intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage.” (Hahn v. Diaz-Barba (2011) 194 Cal. App. 4th 1177, 1196 [internal quotations omitted].) Where the underlying contracts are terminable at will (as is typically the case with enrollment, employment, and many funding relationships), the same “independently wrongful” requirement applies. (Ixchel Pharma, LLC v. Biogen, Inc. (2020) 9 Cal.5th 1130, 1145-1148.)

AMA alleges that Defendants’ conduct was “independently wrongful” because that conduct “violated Defendants’ express contractual obligations under the Lease, breached duties of ordinary care owed to a school environment, and involved the knowing tolerance of unsafe and noncompliant conditions that posed unreasonable risks to students and staff.” (SAC ¶ 64.) As with the FAC, these allegations do not clearly identify a separate statutory or common-law tort duty as the basis of the “independently wrongful” element, distinct from the Lease obligations. (See Motion at pp. 11-14.)

The motion is granted for the second and third causes of action.

B. The Fourth Cause of Action Improperly Seeks Tort Recovery for Breach of Contract.

A cause of action for negligence requires (1) a legal duty owed to the plaintiff to use due care, (2) breach of that duty, (3) proximate causation, and (4) damages. (Artiglio v. Corning Inc. (1998) 18 Cal.4th

604, 614; County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318 [citing Artiglio].)

The

fourth cause of action alleges that Defendants were negligent in undertaking various actions that overlap entirely with the purported actions listed in support of AMA's breach of contract claim. (Motion at pp.

16-17; see SAC ¶¶ 55 [breach of contract], 84 [negligence].) "A person may not ordinarily recover in tort for the breach of duties that merely restate contractual obligations. Instead, "[c]ourts will generally enforce the breach of a contractual promise through contract law, except when the actions that constitute the breach violate a social policy that merits the imposition of tort remedies." [Citation.]" (Aas v. Superior Court (2000) 24 Cal.4th

627, 643.) "Quite simply, the economic loss

rule 'prevent[s] the law of contract and the law of tort from dissolving one into the other.'" (Robinson Helicopter Co.,

Inc. v. Dana Corp. (2004) 34 Cal.4th 979, 988.)

The

motion is granted for the fourth cause of action.

CONCLUSION

The

motion for judgment on the pleadings is GRANTED WITHOUT LEAVE TO AMEND.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at ,gov indicating intention to submit. If all parties

in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 11th day of August 2026

Hon. Thomas D. Long

Judge of the Superior

Court